

24NNCV05608 24NNCV05608

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-18

Motion: PLAINTIFF'S MOTION TO COMPEL FURTHER DISCOVERY RESPONSES FROM DEFENDANT GLENDALE
ADVENTIST MEDICAL CENTER dba ADVENTIST HEALTH GLENDALE

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Case Number: 24NNCV05608 Hearing Date: August 18, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

RAFIK KHUDABHKHSHYAN,

Plaintiff(s),

vs.

ADVENTIST
HEALTH GLENDALE,

Defendant(s).

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CASE NO.: 24NNCV05608

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO COMPEL FURTHER DISCOVERY RESPONSES
FROM DEFENDANT GLENDALE ADVENTIST MEDICAL CENTER dba ADVENTIST HEALTH
GLENDALE

Dept.

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8:30

a.m.

August 18,
2026

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On February 13, 2026, plaintiff Rafik
Khudabkhshyan ("Plaintiff") filed this motion for an order compelling further
responses from defendant Adventist Health Glendale ("Defendant") to Request for

Admission (“RFA”) Nos. 30 through 35, and 38, along with Form Interrogatory (“FROG”) No. 17.1. Plaintiff also requests monetary sanctions against Defendant and its counsel of record. After the initial hearing on July 8, 2026, the parties submitted supplemental briefing on July 15 and July 22, 2026.

The RFAs ask Defendant to admit certain facts about any investigations performed into the incident underlying this action, which involves Plaintiff falling off an operating table on September 1, 2023. The RFAs were the subject of an earlier motion Plaintiff filed on August 8, 2025 (which the Court granted on October 30, 2025).

Defendant’s latest responses include objections the Court previously discussed in its October 30, 2025, minute order. In that minute order, the Court stated that Defendant failed to meet its burden to show that Evidence Code section 1157 applies or that there were investigations by a medical staff committee or peer review committee. The Court also stated that “[t]o the extent that any information or findings were determined through investigations that were not conducted by medical staff or peer review committees, or Defendant’s attorneys, they [such information or findings] are discoverable.” Since Defendant failed to show that Evidence Code § 1157 applied to any of its responses, the objection was overruled.

Now, Defendant states that its responses to Plaintiff’s requests for admission were made “following a reasonable inquiry of the non-privileged information known or readily available” and that “Defendant is presently unable to admit or deny based on lack of sufficient knowledge or information.” Defendant argues that its responses to the RFAs are sufficient because the responses do not need to be based on privileged information. In the abstract, this is true; RFA responses do not need to be based on privileged information. However, the party claiming a privilege has the initial burden of proving the preliminary facts to show the privilege applies (*Lopez v. Watchtower Bible & Tract Soc’y of New York, Inc.* (2016) 246 Cal.App.4th 566, 596) and generally makes the required preliminary showing by declarations. (*Citizens for Ceres v. Superior Court* (2013) 217 Cal.App.4th 889, 911.)

Here, Defendant fails to supply any evidence to show that the information or documents relied on are privileged. Defendant only asserts in its privilege log that fall event reports were “created in anticipation of litigation” or immune from discovery due to Evidence Code §

1151 without providing any evidentiary support that those protections apply. Accordingly, the motion is GRANTED. The Court overrules Defendant's objections based on Evidence Code § 1151, the attorney-client privilege, and the attorney work product doctrine and Defendant is ordered to serve further responses to RFA Nos. 30-35 and 38, and FROG No. 17.1 within 20 days of the date of this answer. The documents identified in Defendant's Further Response to Form Interrogatory No. 17.1(d) with respect to RFA Nos. 30-35 and 38 must be produced.

Sanctions are imposed upon Defendant and counsel of record in the reduced amount of \$2,071.76, consisting of 5 hours at Plaintiff's counsel's reasonable hourly rate of \$400 and a \$71.76 filing fee, payable within 20 days of the date of this Order.

Dated
this 18th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.